European Federation of Churches of Christ

CONSTITUTION FOR THE EUROPEAN FEDERATION OF CHURCHES OF CHRIST

2018

INTRODUCTION

This constitution was adopted by the Constitution General Assembly that was held on 1st of May 2015 in Berlin, Germany. It was last updated (3rd version) on 02 November 2018.

In their constitutional responsibilities, the delegates and board members pray that God grant them wisdom, mutual love and a clear understanding of good order. They commit themselves to the unity of this endeavor in faithful witness to our Lord and Savior, Jesus.

André Nagerski

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Secretary
European Federation of Churches of Christ
November 2018

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[Article 1] PREAMBLE

Definitions: As used in this Constitution the terms:

1.1. **"Accounting Audit Group"** means an office or a group of persons who will audit the accounting and administration of the EFCC;

1.2. **"Church of Christ"** means a congregation of disciples of Jesus that is incorporated as a non-profit organization under the laws of a state;

1.3. **"Confession of Faith"** means a commonly shared set of convictions as described in [Article 3];

1.4. **"Delegate"** means a person who represents a Church of Christ that is a member of the EFCC in the General Board;

1.5. **"EFCC"** means the European Federation of Churches of Christ, an international non-governmental, non-profit organization, composed of affiliated Churches of Christ, which have freely and voluntarily joined the EFCC;

1.6. **"Executive Board"** means the Administrative Board of the EFCC; the institution responsible for the administration, the management and the coordination of the programs proposed by the EFCC;

1.7. **"General Board"** means the Board of Delegates, the board who is the authority of the EFCC;

1.8. **"President"** means the representative chairman of the Executive Board;

1.9. **"Program"** means an activity that is aimed to deliver a service or a tool to the members of the Federation;

1.10. **"Program Manager"** means the person who manages a program;

[Article 2] OFFICE

The principal office of the EFCC shall, unless otherwise established by its General Board, be in Canton of Geneva, Switzerland.

[Article 3] CONFESSION OF FAITH

The objective of this federation, as stated in section [Article 4], is to provide an administrative structure for programs and events organized to meet the common needs of its member churches. The member churches are united on and agree upon the core beliefs listed below but the federation recognizes that it does not exercise any spiritual authority with regards to its member churches.

> We believe in God, the Father almighty, creator of heaven and earth.
> We believe in Jesus Christ, God's only Son, our Lord, who was conceived by the Holy Spirit, born of the Virgin Mary, suffered under Pontius Pilate, was crucified, died, and was buried. On the third day he rose again; he ascended into heaven, he is seated at the right hand of the Father, and he will come to judge the living and the dead.
> We believe in the Holy Spirit,
> We believe that the Bible scriptures are inspired by God,
> We believe in the holy universal Church, the communion of saints, the forgiveness of sins, the resurrection of the body, and the life everlasting.
> We believe that we are saved by grace through faith and that Christians are disciples of Jesus Christ through faith, repentance and baptism; they remain disciples by persevering, repenting and growing in faith throughout their lifetime.
>
> We believe that Faith includes knowing, believing and obeying biblical doctrine.
>
> We believe that repentance is turning from willful sin to submission to God's authority.
> We believe that baptism is defined as total immersion in water, as free and voluntary individuals, by another individual; the baptized receive at this time the forgiveness of sins and the gift of the Holy Spirit.

United by these core beliefs and a shared vision of the Christian life, we as Churches desire to work together to love God, love one another, and love the physically and spiritually needy.

[Article 4] OBJECTIVES

The EFCC shall support the development and the growth of the faith in God by providing its members with the means to help them accomplish their mission. The EFCC shall promote, coordinate, publicize, organize and supervise programs or events throughout the world, and in particular in Europe, which will support the Churches of Christ. In particular without restricting the extent of the general principles stated above, the EFCC shall:

4.1. Promote activities or programs to aid in teaching the Bible;

4.2. Promote activities or programs for the worship of God;

4.3. Promote activities or programs for the evangelization of Europe by supporting the organization of events that are in relation with the mission of Jesus-Christ;

4.4. Promote activities or programs for the Poor and Needy;

4.5. Promote activities or programs that will strengthen the faith of the Churches of Christ and instill faith, especially in the hearts of the youth;

4.6. Support its member Churches in their administrative tasks by providing counseling and by developing tools that will help them in their administrative work;

4.7. Support the training of Church roles such as elders, evangelists, teachers and deacons.

4.8. Promote interactions and solidarity between the member Churches

4.9. To offer a point of contact for communication with the broader Christian community

The EFCC shall accomplish its objectives by providing a platform to define, coordinate, promote and support events or programs that will be offered to its members. The rules that will be applied to validate such events or programs are defined below.

[Article 5] MEMBERSHIP

Any Church of Christ can join the EFCC, provided that all the following conditions are met:

5.1. This Church is a legal entity located in Europe or in the Middle-East; exception can be defined on a case by case basis;

5.2. The members of this Church of Christ accept the Confession of Faith stated above in [Article 3];

5.3. This Church was either present at the Constitution General Assembly of the EFCC or it is recommended by at least two Churches that are already members of the EFCC, who will testify that this new member has convictions that are aligned to the above Confession of Faith in [Article 3];

5.4. This Church has submitted a written request for joining the EFCC and this request has been accepted by the General Board;

5.5. This Church has paid its yearly dues to the EFCC, as defined in articles 7.1 and 9.17;

[Article 6] END OF A MEMBERSHIP

The status of membership in the EFCC can be forfeited when:

6.1. This Church decides to resign from the EFCC. In this case, this Church shall write a letter of resignation to the Executive Board or its President;

6.2. This Church has been dissolved as legal entity;

6.3. A disciplinary action has been taken to exclude this Church from the EFCC due to justified reasons, in particular but not limited to:

- A Church which does not fulfill its financial commitments to the EFCC within a reasonable time period;
- A Church which has persistent deviations from sound Biblical doctrine;

In case of such disciplinary action, following procedure could be applied:

1. The Executive Board or its President addresses a warning to a Church;
2. The Church will be given a reasonable period of time within which it must respond appropriately;
3. The decision to exclude a member Church is made by a two thirds majority of all Delegates.

[Article 7] FINANCIAL RESOURCES OF THE EFCC

The resources of the EFCC shall be exclusively used for the reimbursement of expenses relating to operation of the EFCC, for the temporary support of program according to article 13.4 and payment of the salary of employees who are hired according to article 13.7.

The resources of the EFCC include but are not limited to the following:

7.1. Membership dues;

7.2. Collections and donations of money or of any goods in kind collected from its members or from third parties to the EFCC;

7.3. Grants that could be given by any public or private organization, or from any natural or legal person, provided that such grants are:

7.3.1. granted under compliance with the legislation in force;

7.3.2. grants or donations of any kind granted by any other association;

7.4. Interest and/or income from property and securities belonging to the EFCC.

Only the assets of the Association can be used to meet the commitments taken on behalf the EFCC. Any personal liability of his members is excluded.

[Article 8] ORGANIZATION

The EFCC is constituted by the following bodies:

8.1. The General Board is the decision-making body of the EFCC;

8.2. The Executive Board is the administrative body of the EFCC;

8.3. The Accounting Audit Group is the financial review and reporting body of the EFCC;

The official language of the Federation's governing bodies is English.

[Article 9] GENERAL BOARD

The General Board is the group of Delegates who shall be elected by applying the following rules:

9.1. Each Church who is a member of the EFCC shall elect two (2) representative members as Delegates; these Delegates should represent the spiritual and/or administrative authority of their Church;

9.2. Delegates are chosen by their Churches and are to be reviewed annually; it is however recommended that delegates stay at least two years and both delegates do not resign the same year in order to ensure continuity;

9.3. A Delegate of a Church can be represented by a proxy of their own Church. In this case, the proxy Delegate must have a written authorization (either by letter or electronic communication) attesting their representation, which shall be communicated before the meeting;

9.4. The authorization of a proxy Delegate is to be renewed for each Board meeting;

A Delegate shall:

9.5. Represent the interest of their Church to the EFCC;

9.6. Represent the interest of the EFCC;

9.7. Participate in all the activities that they accepted to assume during their tenure;

9.8. Respect the confidentiality of sensitive or personal information that they received during their activities as Delegate, as long as it is appropriate;

9.9. Report the discussions and decisions of the General Board to their Churches;

9.10. All of the above statements are applicable for the Delegates that are members of the Executive Board or the Accounting Audit Group within their activities in relation to these respective groups;

The General Board shall:

9.11. Hold a meeting at least once during the year. The meetings are led by the President or his deputy;

9.12. A meeting can be attended either face to face or virtually; it is however recommended that every two years Delegates hold a face to face meeting;

It is under the responsibility of Churches to ensure that Delegates who are participating virtually at the Board meeting are authorized persons.

9.13. A meeting is considered valid when at least a simple majority of the member Churches are present or represented; in case this condition is not fulfilled, it can be waived for the next meeting;

9.14. Be called to a meeting by decision of:

9.14.1. The President;

9.14.2. An Executive Board decision according to article 10.9;

9.14.3. A simple majority of the Accounting Audit Group members;

9.14.4. The members of the General Board who shall notify their request within a letter signed by at least a simple majority of the member Churches and addressed to the President;

9.15. In any case, the President shall call the meeting by sending the invitation and organize the meeting. Invitation for the meeting must be given at least four (4) weeks before the meeting, together with the agenda of the meeting.

All documents mentioned in the agenda of the meeting shall be made available at least in draft version to the Delegates at least two (2) weeks before the meeting.

Missing documents or additional documents shall be approved during the Board meeting.

9.16. Make decisions. A decision must be accepted by a simple majority of the Delegates who are present or represented at the General Board meeting;
For decisions to exclude a member Church refer to article 6.3.
For decision to dissolve the EFCC refer to articles 14.1 & 14.2.

9.17. Set the yearly dues to cover basic operational expenses of the EFCC;

9.18. A delegate who proves to be uncooperative and unconstructive in their interactions with the general board will be referred to their home church to confirm that they are indeed representing the interests of their constituents.

The President will be responsible for communicating with this Church or for selecting a person who will be responsible for this communication.

[Article 10] EXECUTIVE BOARD

The Executive Board is the administrative Board of the EFCC. Its members shall be elected by applying the following rules:

10.1. Being selected by the General Board according to the decision process described in 9.16;

10.2. Being a member of the General Board, who voluntarily requested to be part of the Executive Board, or a person who has been designated by the General Board.

10.3. The mandate of a member of the Executive Board must be renewed at least every two (2) years;

The Executive Board shall:

10.4. Consist of at least 3 members, who have the following responsibilities;

10.4.1. The President – who leads the board, synchronizes its activities and is the representative of the Executive Board.

10.4.2. The Treasurer – who manages the finances of the EFCC.

10.4.3. The Secretary – who leads the reporting activities and manages the documents of the EFCC.

10.4.4. The Program Managers who are elected to be part of the Executive Board according to 13.6 and who is willing to participate in the Executive Board.

10.5. Hold meetings at regular intervals to ensure the execution of the Executive Board's tasks, which include:

10.5.1. The administration of the EFCC;

10.5.2. The elaboration of proposals of new programs;

10.5.3. The supervision of the management of programs;

10.5.4. The representation of the EFCC;

The meeting is valid for making decisions when at least two thirds (2/3) of the Executive Board members attend the meeting. However, a valid decision of the Executive Board requires a simple majority of all its members.

Meetings can be face to face or virtual upon Executive Board discretion.

10.6. Be called to a meeting by decision of any member of the Executive Board;

10.7. Be called to its meetings by the President, who shall send the invitation and organize the meeting. Calling for the meeting must be done at least one (1) week before the meeting.

10.8. Represent the interest of the EFCC;

10.9. Make decisions within the scope of their responsibilities.

10.10. Follow and ensure the execution of the decisions made by the General Board;

10.11. Unresolved conflicts between Executive Board members should be brought before the General Board for resolution;

10.12. Report its activities to the General Board. In particular, every Executive Board meeting shall be reported to the Delegates within two (2) weeks.

[Article 11] Accounting Audit Group

The Accounting Audit Group is responsible to internally audit the accounting and the administration of the EFCC. Its members shall be elected by applying the following rules:

11.1. Being a member of the General Board, who voluntarily requested to be part of the Accounting Audit Group, or a person who has been designated by the General Board.

11.2. Being selected by the General Board according to the decision process described in 9.16;

11.3. A member of the Accounting Audit Group shall not be a member of the Executive Board.

11.4. Respect the confidentiality of sensitive or personal information that they received during their activities as auditors, as long as it is appropriate;

11.5. The mandate of a member of the Accounting Audit Group must be renewed at least every two (2) years; One member of this group shall be renewed at least every year;

The Accounting Audit Group shall:

11.6. Verify the integrity of the accounting of the EFCC;

11.7. Have at least three (3) members;

11.8. Ensure the presence of a simple majority of its members for a valid audit;

11.9. Review the accounting and the administration of the EFCC, prior to any ordinary meetings of the General Board;

11.10. Be called to a meeting by decision of:

11.10.1. The President;

11.10.2. The Treasurer;

11.10.3. The Executive Board according to 10.5;

11.10.4. A member of the Accounting Audit Group;

In any case, the Treasurer shall send the invitation and organize the meeting. The call to meet shall be communicated at least one (1) week before the meeting;

11.11. Report the outcome of its audit to the General Board;

During the audits, the members of this group are allowed to access all the information belonging to the EFCC in order to ensure the effectiveness of their task.

[Article 12] REGULATION

A set of Bylaws regulate matters necessary for the EFCC in particular related to its purpose, organization and resources. Issues related to the implementation of these Bylaws are set out in an implementing regulation of the EFCC, or the "Regulations". These Regulations shall be established by applying the following rules:

12.1. Regulations can be defined or changed at any time by the Executive Board according to its decision process described in article 10.5 to the extent that changes are required for best business practices or other needs of the EFCC to accomplish its purposes. In case of conflict between a Regulation and the present constitution, the constitution prevails;

12.2. All member Churches are kept informed by all means available, including the meetings, mail and e–mail;

12.3. In the case of disagreement by one or more member Churches, their delegates must submit their objections in writing with reasons to the Executive Board and request from the Executive Board a reconsideration of the changes made;

12.4. If the objections are rejected in whole or in part by the Executive Board, the objecting members may add their objections to the agenda of a General Board meeting already convened or request a special General Board meeting by applying 9.14.4 in order to submit the amendments to the Regulations to the approval thereof.

[Article 13] Management of Programs

The Executive Board is responsible for supporting the elaboration of proposals to the General Board. Support may include but is not limited to:

- A check list of the items that shall be included in the description of the program;
- Templates for describing the budget of the program;
- Information regarding liability insurance coverage;

- Organizational recommendations;
- Recommendations for useful contacts;

A valid program shall respect the following rules:

13.1. Proposed program shall fulfill the needs or get the support of at least two (2) member Churches;

13.2. Proposed program shall be presented with an objective, a description of the needs that it will fulfill and a financial plan based on the resource that will be required for it to succeed;

13.3. Proposed program shall be financed by the member Churches who decide to carry this program; These Churches shall accept the initial program plan and commit to it for the duration of the program. An involved Church can exit from a program if:

- There is another member Church who accepts to replace this Church;
- All the other Churches involved in the program accept to carry the program without the retiring Church;
- The program requires more funding than anticipated in the initial financial plan, unless the program is already in debt;

13.4. Proposed program shall be financially sustainable by its own resources as an activity that is financially independent from the EFCC. It shall not need additional support from the EFCC, except when for justified reasons, it is not self-sustaining during a limited period of time. In this case, the program shall:

13.4.1. Request the support of the EFCC by specifying the reasons of this request and the time period that is needed;

13.4.2. Have this requested to be accepted by the General Board;

In the case of a program is aborted with a debt, the member Churches who have carried this program shall bear the financial responsibility of this debt.

13.5. A program that is no longer sustainable shall be cancelled. At any time the Executive Board can put a Program on hold, waiting the cancellation decision that will be taken by the General Board or a simple majority of the Churches who carry this program. A program manager who is an Executive Board member by virtue of their role as a program manager forfeits their place on the Executive board if the program they manage is cancelled;

13.6. A program is managed by a Program Manager who is appointed by the General Board. The Executive Board is responsible of the eligibility of Program Managers to fulfill their function. The General Board can propose that a Program Manager be elected to become a member of the Executive Board. The Program Manager becomes a member of the Executive Board by accepting this proposition;

13.7. The Executive Board manages the employment of employees within the Programs. The supporting Churches of the programs are involved in the hiring process. The duration of their contract shall be linked to the plan of the Program. These employees are reporting to the Program Manager (direct report) and the Executive Board represented by the President.

The Executive Board is responsible to supervise the programs. Supervision may include but is not limited to:

- Financial supervision. In particular the management of the program according to the accepted plan;
- Regular reporting during at least every Executive Board meetings;
- Evaluation of the sustainability and correct management of the program, including the timely achievement of the defined goals;

[Article 14] Dissolution

The EFCC can be dissolved at anytime by applying the following rules:

14.1. The decision is made during a General Board where at least two thirds (2/3) of the members are present or represented;

14.2. A simple majority of all members Churches shall accept the decision of dissolving the EFCC;

14.3. The decision is communicated to all the members in written form;

In case of dissolution, the EFCC shall:

14.4. Cancel all the Programs and ensure that all employees' contracts are terminated according to applicable rules in the host country. All remaining salaries and charges shall be paid according to the contracts that have been signed;

Any cancelled program can be transferred to one or several member Churches, if they are willing to continue it.

14.5. Liquidate the assets and transfer any remaining assets to its member Churches. The transfer of the assets of the EFCC to individuals is excluded.

14.6. Dissolve any legal structures that belong to the EFCC.